



Republic of the Philippines
MUNICIPALITY OF PRIETO DIAZ
Prieto Diaz, Sorsogon 4711
LGU TIN: 000794065
Email Address: sbprietodiaz@gmail.com



Office of the Secretary to the Sangguniang Bayan

1st Endorsement
February 20, 2024

OFFICE OF THE SANG-GUNIANG BAYAN
PRIETO DIAZ SORSOGON 4711

RELEASED

DATE: 02/21/2024 TIME: 9:40 AM
BY: [Signature] REF. NO. 058

Respectfully transmitted to **Hon. ROMEO D. DOMASIAN**, Municipal Mayor, the herein attached Resolution No. 030-2024 entitled: **"A RESOLUTION AUTHORIZING THE MUNICIPAL MAYOR, HON. ROMEO D. DOMASIAN, TO ENTER INTO A MEMORANDUM OF AGREEMENT WITH THE BARANGAY GOVERNMENT OF BRGY. MANINGCAY DE ORO, REPRESENTED BY ITS PUNING BARANGAY, HON. CLETO D. DOMASIG, FOR THE TRANSFER OF FUND TO THE SAID BARANGAY UNDER THE MUNICIPAL ANNUAL INVESTMENT PLAN FOR CY 2023"** for his information and appropriate action.

BERNADETTE R. ESPEÑA – YAO
Secretary to the Sangguniang Bayan

Cc:

- Hon. Cleto Domasig
Punong Barangay, Maningcay de Oro
- Mr. Roderick Domasig
MPDC
- Ms. Gemma Ferrer
Municipal Treasurer
- Ms. Maribel Aldon
Municipal Accountant

FEB 21 2024

RECEIVED - CHIEF OF THE
MPPD 02/21/24

RECEIVED
Received by

02/21/2024

OFFICE OF THE
MUNICIPAL ACCOUNTANT
PRIETO DIAZ SORSOGON

RECEIVED

DATE: 2/21/24 TIME: 9:40 AM
BY: [Signature] REF. NO. 058



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Office of the Sangguniang Bayan

EXCERPT FROM THE MINUTES OF THE REGULAR SESSION OF THE 11TH SANGGUNIANG BAYAN OF PRIETO DIAZ, SORSOGON HELD ON FEBRUARY 12, 2024 AT ITS SESSION HALL

PRESENT:

Hon. Joseph H. Yap, Jr.	S. B. Member, Presiding Officer Pro tempore
Hon. Jo Madel D. Domalaon	S. B. Member
Hon. Bienvenido D. Ayo, Jr.	-do-
Hon. Luis Lee E. Espeña, Jr.	-do-
Hon. Alice D. Emano	-do-
Hon. Rodolfo E. Diolata	-do-
Hon. Juan D. Ebid	-do-
Hon. Albert D. Destura	-do-
Hon. Antonio J. Emano, Jr.	LnB Pres. /S. B. Member
Hon. Rene Joseph D. Domasian	PPSK Pres./S.B. Member

ABSENT:

Hon. Avon D. Domalaon, MPA	Municipal Vice Mayor/on leave
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RESOLUTION NO. 030-2024

Introduced by Hon. Bienvenido Ayo, Jr.

A RESOLUTION AUTHORIZING THE MUNICIPAL MAYOR, HON. ROMEO D. DOMASIAN, TO ENTER INTO A MEMORANDUM OF AGREEMENT WITH THE BARANGAY GOVERNMENT OF BRGY. MANINGCAY DE ORO, REPRESENTED BY ITS PUNING BARANGAY, HON. CLETO D. DOMASIG, FOR THE TRANSFER OF FUND TO THE SAID BARANGAY UNDER THE MUNICIPAL ANNUAL INVESTMENT PLAN FOR CY 2023

WHEREAS, forwarded by the Municipal Mayor, Hon. Romeo Domasian to the Sangguniang Bayan is the said MOA with the BLGU of Maningcay de Oro;

WHEREAS, the Sangguniang Bayan was informed that a new MOA is necessary, in lieu of the MOA with the previous Punong Barangay of Maningcay de Oro by virtue of SB Resolution No. 035-2023;

WHEREAS, in order to carry out the transfer of fund, a new MOA shall be executed in view of the new Punong Barangay, Hon. Cleto Domasig;

WHEREAS, the Municipal Development Council and the recipient barangay have identified the project "Construction of Line Canal, Purok 3" as its priority project;

WHEREAS, the amount of P 200,000.00 from the 20% Municipal Development Fund 2023 shall be transferred by the MLGU of Prieto Diaz to the Barangay Government of Maningcay de Oro for this purpose, for the barangay to undertake the said project;

WHEREAS, it shall be understood that transfer and disbursement of the said fund shall be subject to the usual auditing and accounting laws, rules and regulations;

WHEREAS, on motion of Hon. Juan Ebid, duly seconded by Hon. Antonio Emano, Jr.;

NOW, THEREFORE, be it as it is;

HEREBY RESOLVED, to authorize the Municipal Mayor, Hon. Romeo D. Domasian, to enter into a Memorandum of Agreement with the Barangay Government of Brgy. Maningcay De Oro, represented by its Punong Barangay, Hon. Cleto D. Domasig, for the transfer of fund to the said barangay under the Municipal Annual Investment Plan for CY 2023;

FINALLY RESOLVED, to transmit this resolution to Hon. Romeo D. Domasian, Municipal Mayor; copy furnished to the Sangguniang Barangay of Maningcay de Oro through its Punong Barangay Hon. Cleto Domasig; Mr. Roderick Domasig, MPDC; Ms. Gemma Ferrer, Municipal Treasurer; Ms. Maribel Aldon, Municipal Accountant; and all concerned for their information and appropriate action;

APPROVED UNANIMOUSLY.

HEREBY CERTIFY TO THE CORRECTNESS OF THE FOREGOING.


BERNADETTE R. ESPEÑA-YAO
Secretary to the Sangguniang Bayan

ATTESTED:


Hon. JOSEPH H. YAP, JR.
S. B. Member, Presiding Officer Pro-tempore

MEMORANDUM OF AGREEMENT

KNOW ALL MEN BY THESE PRESENTS:

This Memorandum of Agreement entered into by and between:

The **MUNICIPAL LOCAL GOVERNMENT UNIT OF PRIETO DIAZ (MLGU)**, a local government unit in the Province of Sorsogon, with office address at Perlas, Prieto Diaz, represented herein by its Municipal Mayor, HON. ROMEO D. DOMASIAN,

-and-

The **BARANGAY LOCAL GOVERNMENT UNIT (BLGU) OF MANINGCAY DE ORO**, Prieto Diaz, Sorsogon, with office address at the aforesaid barangay, represented herein by their Punong Barangay CLETO B. DOMASIG,

WITNESSETH

WHEREAS, Section 17 of Republic Act 7160 otherwise known as The Local Government Code of 1991, specifically mandates all local government units to be self-reliant and continue exercising the powers and discharging the duties, functions and responsibilities vested upon them that are necessary, appropriate, or incidental to efficient and effective provision of the basic services and facilities;

WHEREAS, pursuant to the aforementioned provision, the MLGU and BLGU has identified priority developmental projects in their respective annual investment program;

WHEREAS, Section 33 of the Local Government Code, states that local government units may, through appropriate ordinances, group themselves, consolidate, or coordinate their efforts, services and resources for the purposes commonly beneficial to them. In support of such undertakings, the local government units involved may, upon approval by the sanggunian concerned after a public hearing conducted for the purpose, contribute funds, real state, equipment, and other kinds of property and appoint or assign personnel under such terms and condition as may be agreed upon the participating local units through Memoranda of Agreement;

WHEREFORE, the parties hereby agree to the following TERMS and CONDITIONS:

1. The subject project/s will be undertaken by the BLGU of Maningcay de Oro with funding counterpart from the MLGU of Prieto Diaz;
2. The MLGU of Prieto Diaz shall transfer the amount of Two Hundred Thousand (Php 200,000.00) Pesos from the 20% Municipal Development Fund to the BLGU for the project:

1. Construction of Line Canal, Purok 3, Brgy. Maningcay de Oro

If for any reason/s, any part or provision of this Memorandum of Agreement is declared invalid or contrary to any provisions of law applicable herein, any part or provision not affected thereby shall remain in full force and effect.

IN WITNESS WHEREOF, the parties have hereunto set their hands this _____ at Sorsogon City, Philippines.

IN WITNESS WHEREOF, the parties hereto have signed this **MEMORANDUM OF AGREEMENT** on this ____ day of _____ 2024 in _____.

**OFFICE OF THE PRESIDENTIAL
ADVISER ON PEACE,
RECONCILIATION AND UNITY**

**MUNICIPAL LOCAL GOVERNMENT
OF PRIETO DIAZ, SORSOGON**

BY:

BY:

CARLITO G. GALVEZ, JR.
Secretary

ROMEO D. DOMASIAN
Mayor

WITNESSES:

WITNESSES:

ATTY. WILBEN M. MAYOR
Presidential Assistant for Local Conflict
Transformation and Peace Sustainability

CERTIFIED FUNDS AVAILABLE:

SHERRY ANNE D. PADERON, CPA
Head, Accounting Division